

In fulfilling these responsibilities, the Court “shall...[a]dopt and utilize a firm, consistent policy against continuances, to the maximum extent possible and reasonable, in all stages of the litigation.” (*Id.* at subd. (g).) Therefore, a party moving for a continuance must show good cause requiring the continuance. (*Ibid.*)

“To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules of Court, rule 3.1332, subd. (a).) Continuances are disfavored and the Court may only grant a continuance “on an affirmative showing of good cause *requiring* the continuance.” (See *id.* at subd. (c). Emphasis added.)

Duffy’s argues that the requested continuance is appropriate based on its inability to complete discovery. Duffy’s contends that it has been unable to obtain “complete mental-health history and psychotherapy records that plaintiff has withheld since August 2024.” (Declaration of Alexander M. Farkas, Esq. at ¶¶ 4-11 (Farkas Decl.)) Duffy’s explanation, however, fails to adequately explain the asserted “inability” to obtain these records. The Civil Discovery Act provides specific means for obtaining relief where a responding party fails to honor its discovery obligations. In the Court’s experience, two years is more than adequate time for a party to avail themselves of these means.

Duffy’s argues that a number of other discovery issues remain unresolved. Duffy’s fails, however, to establish that, despite Duffy’s diligence, the issues could not have been resolved. For example, Duffy’s indicates that it “has begun serving deposition notices on plaintiff’s non retained expert witnesses – 23 providers.” (Farkas Decl. at ¶ 14.) That Duffy’s has only “begun” serving these notices at this point in the litigation does not suggest that it has proceeded with all diligence in doing so. The Court is unable to fully analyze the remainder of Duffy’s assertions because of the global redaction of every exhibit attached to the Farkas Decl.

The Court notes that Summons was served on Duffy’s in this action over three years ago. Moreover, the trial date has already been continued three times; last at Duffy’s request by Court Order of December 4, 2025.

Based on the foregoing, Duffy’s fails to make “an affirmative showing of good cause requiring continuance of trial.” (See Cal. Rules of Court, rule 3.1332(c).) The Application is, therefore, DENIED.

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Joel V. Benson v. Lisa Benson et al

25CV001556

MOTION OF PLAINTIFF JOEL V. BENSON FOR ORDER APPOINTING APPRAISER

TENTATIVE RULING: The matter is CONTINUED to August 14, 2026, at 8:30 a.m. in Dept. A.

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In The Matter of Bob Miranda Neal

26CV000926